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Case Number: 26STCV14059 Hearing Date: September 11, 2026 Dept: 514

Baxter v. Sony Pictures Television,
Inc.

26STCV14059

Defendant's Motion to Compel Litigation

Tentative Ruling

The
motion is granted.

Background

This case
arises out of an employment relationship.

On May 1, 2026, Wendy Baxter ("Plaintiff") filed the complaint in this action against Sony Pictures Television, Inc. ("Defendant") and Does 1 through 10 for (1) age discrimination, (2) sex/gender discrimination, (3) retaliation, (4) failure to prevent discrimination and retaliation, (5) retaliation in violation of Labor Code section 1102.5, (6) wrongful termination in violation of public policy, and (7) violation of the California Equal Pay Act.

On July 23, 2026, Defendant filed this motion to compel arbitration. Plaintiff filed an opposition on August 13, and Defendant filed a reply on August 19.

The hearing was initially set for August 26 and was continued to September 11.

Legal Standard

California law and the Federal

Arbitration Act ("FAA") share many of the same policy objectives with regard to arbitration, including a presumption in favor of arbitrability. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) Under the FAA:

"A

written provision in ... a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, or an agreement in writing to submit to arbitration an existing controversy arising out of such a contract, transaction, or refusal, shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract"

(9 U.S.C., § 2.) Under

Code of Civil Procedure section 1281, a "written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract."

Code of Civil Procedure section 1281.2

provides, in pertinent part, the following:

"On

petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a)

The right to compel arbitration has been waived by the petitioner; or

(b)

Grounds exist for the revocation of the agreement.

(c)

A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact

(d)

... If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding."

(Code Civ. Proc., § 1281.2.)

"[A]rbitration

agreements are creatures of contract." (Ford

Motor Warranty Cases (2025) 17 Cal.5th 1122, 1125.) Arbitration is "a matter of consent, not coercion," and the Federal Arbitration Act "does not require parties to arbitrate when they have not agreed to do so.

(Vlt Information Sciences v. Board of Trustees of Stanford University (1989) 489 U.S. 468, 478-479.)

"In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. General principles of contract law guide the court in making this determination." (Ford Motor Warranty Cases, supra, 17 Cal.5th at p. 1128.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla, supra, 15 Cal.4th at p. 972; Giuliano

v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) This is usually done by presenting a copy of the signed, written agreement to the court. (See Cal. Rules of Court, rule 3.1330 ["A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference."].) 2

As our Supreme Court has explained:

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement—either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see [Code Civ. Proc.] § 1281.2(a), (b))—that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense."

(Rosenthal

v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.)

The party seeking to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence." "In determining whether an arbitration agreement applies to a specific dispute, the court ... should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." 22 (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353 [citations omitted].) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified and the issue is whether that controversy is within the scope of the contractual arbitration clause." 23 (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.)

In ruling on a petition or motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (Giuliano, supra, 149 Cal.App.4th at p. 1284.)

Discussion

Defendant moves to compel arbitration and to stay the action.

In support of its motion, Defendant provides the declaration of Jacqui Ngo, Director, Operations in People & Organization for Sony Pictures Entertainment, Inc., which provides for Defendant. (Ngo Decl., ¶ 1.) Ms. Ngo states that she has access to Defendant's personnel files, records, policies, electronic signature programs, and associated records. (Ngo Decl., ¶ 3.) To access work emails, employees are required to enter a login credential, including a password that is created by each employee. (Ngo Decl., ¶¶ 4-5.) Defendant uses Adobe Sign to obtain electronic signatures on contracts, including employment agreements. (Ngo Decl., ¶ 6.) Ms. Ngo states that, according to the records she reviewed, Plaintiff was sent the Employment Agreement (Ngo Decl., Exhibit B) on April 1, 2022, and signed it that same day. (Ngo Decl., ¶ 8.) Exhibit A to the Employment Agreement is a printed form entitled, “Standard Terms and Conditions of Employment,” and paragraph 12 of the Standard Terms contains an arbitration provision. Specifically, paragraph 12 provides:

“(a) Except as provided below, the substantive laws (as distinguished from the choice of law rules) of the State of California will govern (i) the validity and interpretation of this Agreement, (ii) the performance by the parties of their respective duties and obligations under this Agreement and (iii) all other causes of action (whether sounding in contract or in tort) arising out of or relating in any fashion to Employee's employment by the Company or the termination of such employment. Notwithstanding the foregoing, the enforcement, interpretation and application of the agreement to arbitrate (set forth in subparagraphs (b) and (c), immediately below) shall be governed by the Federal Arbitration Act, 9 U.S.C. Section 1, et seq.

(b) Any controversy or claim arising out of or relating to this Agreement, its enforcement, arbitrability or interpretation, or because of an alleged breach, default or misrepresentation

in connection with any of its provisions, or arising out of or relating in any way to Employee's employment or termination of employment, including, for example, any alleged violation of statute, common law or public policy, will be submitted to final and binding arbitration, to be held in Los Angeles County, California, before a single arbitrator, in accordance with the then-current JAMS Arbitration Rules and Procedures for Employment Disputes, as modified by the terms and conditions contained in this Paragraph. The arbitrator will be selected by mutual agreement of the parties or, if the parties cannot agree, then by striking from a list of arbitrators supplied by JAMS. The arbitrator will issue a written opinion stating the essential findings and conclusions upon which the arbitrator's award is based. The Company will pay the arbitrator's fees and arbitration expenses and any other costs unique to the arbitration hearing (recognizing that each side bears its own deposition, witness, expert and attorneys' fees and other expenses to the same extent as if the matter were being heard in court). If, however, any party prevails on a statutory claim, which affords the prevailing party attorneys' fees and costs, then the arbitrator may award reasonable fees and costs to the prevailing party. Any dispute as to who is the prevailing party and/or the reasonableness of any fee or cost will be resolved by the arbitrator.

(c) All claims, defenses and proceedings (including, without limiting the generality of the foregoing, the existence of a controversy and the fact that there is an arbitration proceeding) will be treated in a confidential manner by the arbitrator and all those involved in the proceeding. Any controversy relating to the arbitration presented to a court will be filed under seal to the extent permitted by law."

(Ngo Decl., Exh. B.)

With this evidence, Defendant has met its initial burden of presenting evidence of an arbitration agreement between the parties that covers the claims in the complaint. This shifts the burden to Plaintiff to identify a dispute regarding the existence or scope of the agreement or some other defense to enforcement. (See *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51-52; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047.)

Plaintiff opposes this motion, arguing that the arbitration provision in the Employment Agreement is unconscionable.

As

noted above, an agreement in writing to arbitrate is valid and enforceable “save upon such grounds as exist in law or in equity for the revocation of any contract.” (9 U.S.C., § 2; see also Code Civ. Proc., § 1281.) One such ground is unconscionability. (E.g., *Ramirez v. Charter Communications* (2024) 16 Cal.5th 478, 492; *Armendariz v. Foundation Health Psychcare Services* (2000) 24 Cal.4th 83, 113-114.)

“The

general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.

Unconscionability has both a procedural and a substantive element. ...

Procedural

unconscionability addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. This element is generally established by showing the agreement is a contract of adhesion, i.e., a standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it. ...

Substantive

unconscionability looks beyond the circumstances of contract formation and considers the fairness of an agreement’s actual terms,” focusing on whether the contract will create unfair or one-sided results. Substantively unconscionable contractual clauses reallocate risks in an objectively unreasonable or unexpected manner.

Both

procedural and substantive elements must be present to conclude a term is unconscionable, but these required elements need not be present to the same degree. Courts apply a sliding scale analysis under which the more substantively oppressive a term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.”

(Ramirez,
supra, 16 Cal.5th at pp.492-493.)

The
unconscionability standard is, and must be, “the same for arbitration and
nonarbitration agreements.” (Sanchez
v. Valencia Holding Co. (2015) 61 Cal.4th 899, 912.)

Beginning with procedural
unconscionability, the Court finds that there is some degree of procedural
unconscionability here. Although
Plaintiff does not present any evidence regarding the circumstances under which
the Employment Agreement was signed, the arbitration provision is contained in
a printed form attached to the agreement itself; the arbitration provision is
buried on page 3 and 4 of the “Standard Terms and Conditions of Employment,”
without any bold type, highlighting, or other emphasis to draw the reader’s
attention to such a significant term. Moreover,
there is no indication or suggestion (for example) that Defendant specifically brought
the arbitration provision to Plaintiff’s attention; that Plaintiff could have engaged
in negotiation regarding the “Standard Terms and Conditions of Employment” of
her Employment Agreement; or that Plaintiff could have opted out of the
arbitration provision (and was so advised).

Turning to substantive unconscionability,
Plaintiff argues that the following terms in the Employment Agreement are unconscionable:
(1) a delegation clause (Opp. at pp. 3-4); (2) a one-sided carve-out for
injunctive relief (Opp. at pp. 5-7); (3) a limitation on the employee’s right
to serve as an expert witness (Opp. at p. 7); and (4) a non-solicitation
provision (Opp. at p. 8.) The Court
considers each in turn.

First, Plaintiff argues that JAMS Rule 11
(which would apply to an arbitration under the Employment Agreement) is “independently
unconscionable” because it requires an arbitrator, and not a court, to rule on
arbitrability. Plaintiff does not
explain why that is so, and it is not immediately clear to the Court. The provisions of Rule 11(b) may well be
unenforceable, but that’s a separate issue.
Substantive unconscionability examines whether the terms are (for
example) one-sided or unfair, and there does not appear to be anything one-sided

or unfair in having a neutral arbitrator, as opposed to a neutral judicial officer, make a decision regarding arbitrability.

Second, Plaintiff argues that paragraph 11 of the Standard Terms and Conditions creates a one-way exception to arbitration for Defendant. It does not. Paragraph 11(b) provides:

"Employee acknowledges, and stipulates to a legal finding, that the services to be rendered by Employee under this Agreement, and the rights and privileges granted by Employee to the Company under this Agreement, are of a special, unique, extraordinary and intellectual character which gives them a peculiar and special value, the loss of which cannot be reasonably or adequately compensated in damages in an action at law, and a breach by Employee will cause the Company great and irreparable injury. Employee acknowledges that the Company will, therefore, be entitled, in addition to any other remedies which it may have under this Agreement or at law, to seek injunctive and other equitable relief (including without limitation specific performance) to enforce any of the rights and privileges of the Company or any of the covenants or obligations of Employee under this Agreement."

Although this provision benefits Defendant by making it potentially less burdensome for Defendant to obtain specific performance or other equitable relief in the event of a breach of contract, this provision does not exempt Defendant from arbitration or prohibit Plaintiff from seeking equitable relief (whether from a judge or an arbitrator). This provision is not, on this record, substantively unconscionable.

Third, paragraph 13(a) of the Standard Terms and Conditions provides that an employee may not serve as an expert witness in a proceeding against Defendant without Defendant's consent. This, of course, has nothing to do with arbitration. Nor has Plaintiff shown that it is the type of unfair or burdensome provision that shocks the conscience or is otherwise substantively unconscionable.

Fourth,

and finally, paragraph 8(i) of the Standard Terms and Conditions bars Plaintiff from soliciting any other person to terminate their employment with Defendant. Plaintiff recognizes that “this provision is unlikely to be dispositive,” and the Court agrees. Whether standing alone or in conjunction with the other provisions identified by Plaintiff, this term does not establish that the Employment Agreement is substantively unconscionable.

In sum, some degree of procedural unconscionability appears in the record, but Plaintiff has not shown substantive unconscionability. The Court concludes that the Employment Agreement is not unconscionable.

Accordingly, the motion to compel arbitration is granted.

Conclusion

The Court GRANTS motion of Defendant Sony Pictures Television, Inc. to compel arbitration.

The Court ORDERS the parties to arbitrate their dispute in accordance with the terms of their contract.

The Court STAYS this matter in its entirety pending completion of the arbitration (or further order of the Court).

The Court SETS a post-arbitration status conference for July 14, 2027 at 8:30 am in Department 514.

The Court ORDERS the parties to file a written report regarding the status of the arbitration by no later than June 30, 2027.

Moving Party is ORDERED to give notice.